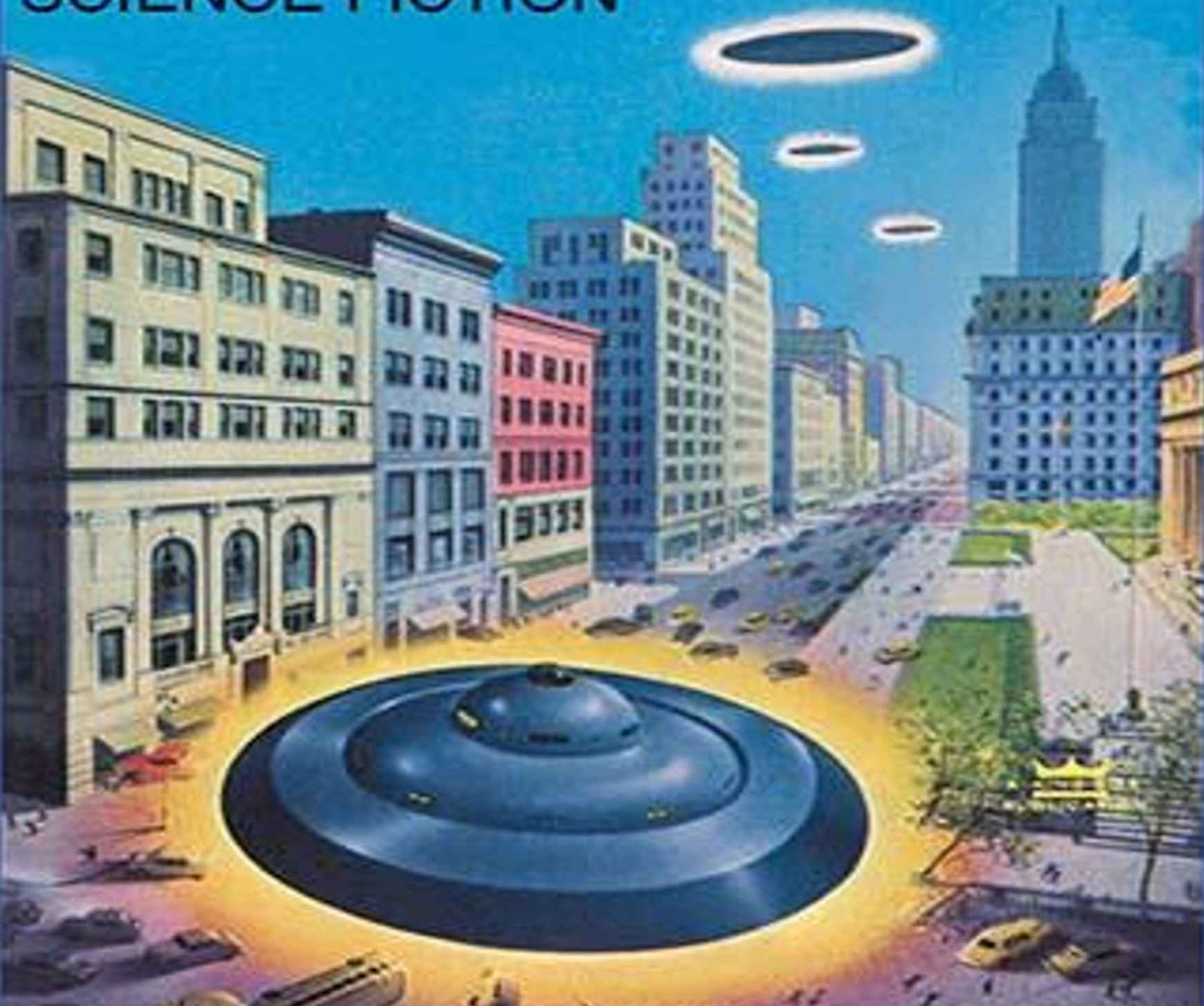


FANTASTIC UNIVERSE

NOW
35c
JULY

SCIENCE FICTION



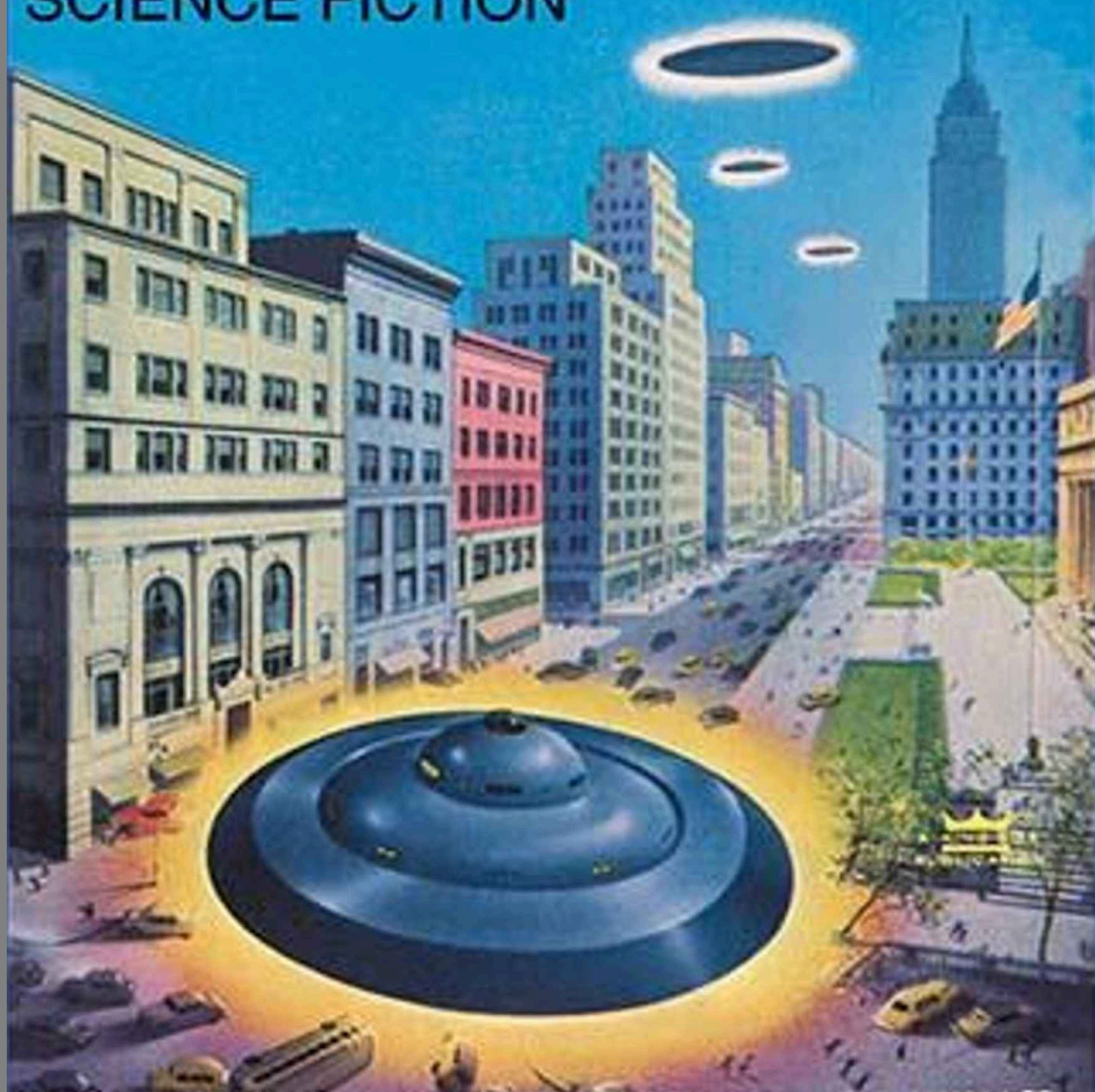
MARGARET ST. CLAIR • LESTER DEL REY • F. L. WALLACE
PHILIP JOSE FARMER • FRANK BELKNAP LONG • ALGIS BUDRYS
SAM CARSON • IDRIS SEABRIGHT • JOHN VICTOR PETERSON

ALL STORIES IN THIS ISSUE BRAND NEW

FANTASTIC UNIVERSE

SCIENCE FICTION

NOW
35c
JULY



MARGARET ST. CLAIR • LESTER DEL REY • F. L. WALLACE
PHILIP JOSE FARMER • FRANK BELKNAP LONG • ALGIS BUDRYS
SAM CARSON • IDRIS SEABRIGHT • JOHN VICTOR PETERSON

ALL STORIES IN THIS ISSUE BRAND NEW

The Project Gutenberg eBook of Too close to the forest

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Too close to the forest

Author: Bryce Walton
Al Reynolds

Release date: April 8, 2024 [eBook #73356]

Language: English

Original publication: New York, NY: King-Size Publications, Inc., 1954

Other information and formats: www.gutenberg.org/ebooks/73356

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK TOO CLOSE TO
THE FOREST ***

Too close to the forest

By Bryce Walton & Al Reynolds

The dazzling difference between failure and success hung from a spidery thread. And established a barrier no ESP could sever.

We roll out the red carpet for Bryce Walton and Al Reynolds. New to us —but not to you. Their's is the delicate tale of a sensitive mind, the mind of Dr. Marsten who tried frantically to reach his colleagues. Only to prove that over-familiarity with a subject, reiteration of detail, may obliterate the essential vital point to success of a great scientific experimentation.

[Transcriber's Note: This etext was produced from
Fantastic Universe July 1954.]

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

I won't forget that evening of the big experiment. If the truth is ever known about that evening maybe the world will never forget it either. I got there first, and went into the hall they'd let Dr. Marsten have for the evening on the Revere University Campus. Dr. Marsten was sitting there alone behind a table with a few papers in front of him. A single lamp burned that spotlighted his face like some old classic sculpture in a gallery.

That's the way I remember him. Small, with delicate yet lined features, and his hair, still dark, and his eyes bright and even darker from peering beyond the frontiers of the human mind.

I never saw him again after that night, not in any way I want to remember.

He offered his hand. It was hot and damp and shaking a little. Tension had drawn his mouth tight, even when he managed to smile at me and indicate a chair. I sat down.

"I'm so glad you're here, Max," he said. "It is right that you share in this triumph." I could feel the tension behind his words. It was the climax of his life. He would either vindicate himself or go, disgraced, into oblivion.

He didn't have to explain any of this to me. I guess I was closer to Dr. Marsten than anyone had ever been, except his wife, of course. She had died ten years before. From that time on he lived for his work in experimental psychology. Until finally, much to everyone's shock and disbelief, he turned to *parapsychology*. And I worked with him against the heartbreakingly rigid demands of the scientific method.

I was only a graduate student working for my Doctor's degree at the time. A term paper I'd done had impressed Marsten and he had gotten me a scholarship. During the four years after that I was his assistant and confidant.

That is, I was until he got completely wrapped up in parapsychology, Extra Sensory Perception. At that point he abruptly dismissed me.

I knew why. I argued about it but he was adamant. He knew what experiments in a field tinged with mysticism and the supernatural might do to my scientific professional career. As it finally did to his. He didn't want to involve me.

He was ostracized, dismissed from the University as a faculty member. The scientific world depends on its open mind, within the bounds of its own techniques. But the unknown worlds of the human mind are sometimes very hard to fit into the rigid scientific disciplines and methodologies.

Rhine's experiments satisfy those who want desperately, many of them for highly personal reasons and needs, to believe in Extra Sensory Perception. It doesn't satisfy the scientific mind. Its "scientific validity," based on averages greater than those of "chance," are not adequate for the scientific method. Too many variables. But Marsten had told me he had gone much further than Rhine or his disciples. And now he'd ask me to be here for the culmination of his ten years of work.

"My theories will now be proven," he'd written me. "I want you to see the proof I shall offer on the opening of new worlds of the human mind...."

He'd published books on the subject but the world of science labeled them pseudo-science, stuff for the psychic research societies and those who take photographs of ectoplasm.

I believed in Marsten to an extent. But at the same time I doubted that he could prove his contentions. I knew he was staking everything on his faith in himself tonight. The biggest men in science—men who had respected Marsten as a scientific mind until he went off the deep end, they thought—were going to appear, allow him to use them in his experiment to prove his theories.

They were big men in heart as well as reputation. But Marsten had done some remarkable work in experimental psychology in the past and I guess no one, outside of myself, wanted to see him regain his professional respect and reputation as much as did those men: De Vaca, Professor of English Literature; H. Morrison, Professor of Biology; M. Borinsky, Professor of History and specialist in the History of Russia; Billingsley, Professor of Theosophy; Marian Adler, Psychology Professor who happened to have the same surname as Freud's disciple, and there were others.

They had all agreed to Marsten's request to be a part of his final experiment to prove the existence of mental telepathy.

"I'll prove mental telepathy tonight so they'll have to believe it," Marsten said softly. "And think what that will mean. New fields of research will

open the gates to human freedom and escape from man's sad mental limitations. It will bring official, legalized scientific research into the mind that will end the ills of mankind!" He leaned forward and gripped my wrist. His forehead was wet. His voice was hoarse. "It'll work tonight, Max!"

"And if it doesn't?" I asked.

He sat back, shook his head. "It will," he said. "I know because I've proven it to myself. But—but if it doesn't—" He shrugged. "I'm through. It will be the end of the road for me."

The way he said it, more than the words, frightened me. I knew how intense he was, how much his work meant to him. And when he spoke like that I knew—I feared—that Marsten had become emotionally unbalanced.

"That's ridiculous," I said. "You can go ahead with your work, regardless. Some of the greatest scientific advances have been made against the popular grain. In fact, most scientific work! Remember Galileo, Newton...."

He shrugged. "Matter of temperament. I know my own limitations, my weaknesses. But I *know* this experiment tonight will work! Listen, Max—I don't care about publicity. I've invited no reporters. I want only these scientists to know, that's all. They're the ones who have to be convinced. To give the field of parapsychology respectability so that the vast resources and brains of science can be turned loose on it, that's all I want."

He looked at me intense, earnest. "Max," he whispered, "the rumors that are circulating about me—I've heard about them. They think I'm unbalanced mentally! You've heard that?"

I was embarrassed. I had heard. Everyone had. I said, "You're respected as an honest and scholarly man, a genius in the field of psychology. These men, if they speculate at all along that line, think you've deluded yourself by the 'will to believe' in your own experiments. Wishful thinking, some call it. I don't believe anyone thinks your capabilities in normal psychological work have diminished. If anything, they're probably stronger."

He managed a thin laugh. "Well," he said. "Tonight will prove something, anyway."

I remember the greetings when the other scientists arrived, the slightly embarrassed attempts at conviviality. Within half an hour all of the nine men arrived and were seated before Marsten's table. All his former co-professors at the University where Marsten no longer taught. I could see that Marsten was obsessed almost as much with proving that these men's lack of faith in him was wrong, as he was in proving his own theories right.

I felt apprehensive as Marsten started to talk. But as his self-confidence, his obvious faith in himself began to show, I felt better. His enthusiasm and confidence was so contagious that it even affected the nine scientists so that they, too, became more interested than embarrassed.

"Gentlemen," Marsten was saying, "you know from my letters why you have been asked here. Needless to say, I am grateful beyond words that you came to be shown proof of what you've refused so far to believe—and with good cause. Tonight I shall demonstrate scientifically the existence of mental telepathy. I shall prove to all of you in an interrelated and undeniable way so that there will be no doubt concerning my facts. No doubt whatsoever."

No one else said anything. Feet shuffled and there was a cough or two. All of them knew what this would mean if Marsten could prove his theories; what it would mean to him if he failed.

Marsten went on. "If I show that *you* can read *my* mind, that should prove my theories to your satisfaction. I shall do this without any hypnotic suggestion.

"I have not told anyone of the techniques which I've worked out over a period of years, not even Max Reinach here. This will be my first group demonstration of my theories. Until I was ready to give conclusive scientific proof I did not confide fully to anyone, even to Max, my closest associate."

He had told me a little, that is true. So little, in fact, that I knew not much more about his theories than the rest of the scientists gathered here tonight.

"... and so, gentlemen, I shall get the experiment over with as quickly as possible. There are two rooms, as you see, one at each end of the hall. I shall go into one room and lock the door. It is impossible for me to see or

hear anything that goes on outside that room. Before the experiment starts I shall ask you to examine that room yourselves, in any way you like."

De Vaca and Dr. Morrison went into the room, examined it thoroughly. Then one of them stayed inside while the other came out, closed the door, tested for sound. Finally, Morrison said, "We agree—it is a sound-proof room. It is bare inside. There is no opening other than this door."

"Thank you," Marsten said. "Max, will you hand each of these gentlemen one of these cards and a pencil." I took the cards and pencils from his table and handed them out.

"Now," Marsten said, "one by one, you will go, in any sequence you desire, into that other room and lock the door. I will be locked in this room that you checked. A bell in the room you are in will ring. That will be the signal for you to leave the room and for someone else to go in.

"During the time each of you is in that room, please keep your minds open, receptive for a thought impression you will receive from me. That's all there is to the experiment. Excepting this—" he lifted a sealed envelope from the table. "This contains proof which will verify the success of this experiment. I leave it here. You will, as a committee, lock it in the safe upstairs in the business office. Take it from the safe only after the experiment is over."

So the experiment started. I sat over by the wall, watching their faces. I observed the way each man, in his own highly personalized way, got up and played his part in an experiment which he believed to be ridiculous.

I remember how each of them looked and acted as they, one by one, went into that room, locked the door, and came out later when the bell rang. I studied closely their faces as each came out. They went in embarrassed silence back to their chairs and sat down, each holding a card upon which they had written the thought supposedly received from Marsten.

I felt the terrific tension. The room seemed hot and stifling as Marsten came out of his room finally and went over to the table. His face was pale and moist. His hair was wet and stringy around his ears and over his forehead.

The ticking of the clock suddenly sounded louder and louder. The breathing of the nine men seated there got louder. I could hear my own heart going like a turbine in my chest. Now we waited for Marsten to speak.

He glanced at me, motioned to me. I got up and went over to the table. His eyes were dark and bright. "Collect the cards will you please, Max, and give them to me?"

I did that. I didn't want to give them to him. I had a crazy idea of running out of there with the cards. Then it would be my fault that Marsten had failed. I didn't believe in Marsten then. I wanted to. I'd worked with him, knew his greatness, his integrity and sincerity. I knew he might be emotionally unstable. I wanted to believe, but I wasn't convinced at all. Man is ever credulous in the wrong place, at the wrong time, about the wrong things. We swallow the emotional screamings of demagogues, reject the quiet discoveries of great men who only do not know the techniques of salesmanship, of propaganda.

But I put the cards on the table beside Marsten. Then, as he picked them up I began to feel differently. I don't know why. Perhaps his bravery, his courage and tenacity, his faith in his own beliefs, overwhelmed me suddenly.

I was with him then. Somehow, all at once, I *knew* he was right. Suddenly I had all the old confidence and trust in his genius that I had had years before when I'd worked with him so closely.

The silence in the room then was paralyzing, a thick binding tension. The nine professors stood up as if sitting now was untenable. Professors of English literature, Biology, Astronomy, Music, Medicine, Psychiatry, History, Physical Education, Religion. They stood there waiting for Marsten to check their written thoughts on the cards.

Marsten spread them out like a hand of bridge and looked at them. His muscles jerked once, as from a galvanic reflex, like a man suddenly touched with a high-tension wire.

He cried out, as from deep and wracking mental pain. The sound hit into the room's silence like metal into flesh. He dropped the cards abruptly and they spilled over the table. He stared at the floor between the table and the nine men facing him.

His voice sounded far away, muffled. "Gentlemen, I've—failed. I've—failed—miserably!"

He swayed. I ran around the table and caught him to stop his falling. His muscles quivered under my hands.

He pushed me away. His eyes were hot and a little wild. Then he stood up straight, like an old soldier at bay.

"I'm sorry you have had your valuable time imposed upon so inexcusably. No need—no need now, I assure you, even to open the sealed envelope. I missed—missed in every case except that of Professor Adler. My success with him I attribute entirely to chance."

He took a step backward and whispered, "Goodnight, gentlemen. Goodnight and—goodbye."

I called out, but he went on out the door. I ran after him into the hall, but he had ducked out a side door. I followed him across the darkening campus. But his car roared away before I could reach him. I did not have a car so I could not follow.

I didn't talk to the others. I went home. And I began to phone, trying to locate Marsten. I called every few minutes and I called the police and everyone who knew him. The police said they would put out a dragnet if he didn't show up within the next twenty-four hours. I had explained he was in great distress, that I was afraid of what he might do.

I didn't sleep well that night. There was no word about Marsten's whereabouts in the morning. I began to think that perhaps suicide was the only way out for him now. I doubted that he would be able to face the failure of that experiment he had planned for so long, and on which he had staked all of what remained of his reputation.

I managed to get three of the nine scientists to be with me when I went to the office at the university and opened the safe and took out that sealed envelope next morning. De Vaca, a small nervous man with constant flighty gestures, Morrison, biology professor, a solemn, bald little man, and Billingsley who had a jaw like a prizefighter, and was big and gruff, but brilliant.

They, too, were worried about Marsten's disappearance, considering his state of mind. Now we all wanted to know what that envelope contained. Maybe its contents would assist us in helping Marsten—if we found him.

After examining the contents of the sealed envelope, we sat around the table and no one said anything for what seemed a long time. Finally De Vaca said, "He failed all right. But it was a wonderful plan, and certainly we could no longer deny the existence of mental telepathy had this idea worked out as he planned it."

Morrison said, "But we must find Marsten before he kills himself. He should be institutionalized, now, his mental unbalance treated...."

The others agreed. They began to discuss where to begin the search for Marsten.

I thought about what we had found in that sealed envelope. Marsten had had a great idea all right. Although the professors had selected their own order of going into the testing room, Professor Marsten had arbitrarily numbered each of them from 1 to 9. Using the subjects which they taught instead of their names, he expected to prove mental telepathy. In the envelope he had left this list:

1. *Thackeray—Professor of English Literature*
2. *Evolution—Professor of Biology*
3. *Lungs—Professor of Anatomy*
4. *Elgar—Professor of Music*
5. *Phenobarbital—Professor of Medicine*
6. *Adler—Professor of Psychology*
7. *Trotsky—Professor of Russian History*
8. *Hockey—Professor in Physical Education*
9. *Yuletide—Professor in Theology*

Each participant was to have received a specific word or name which was directly connected with his field of teaching. The first letter of each word, formed an acrostic reading down which spelled out:

T-E-L-E-P-A-T-H-Y

The cards the professors had handed in were also there beside us on the table. I went through those cards again, slowly, while De Vaca and Morrison and Billingsley debated as to the best way of locating Marsten.

I wanted to do more than just find Marsten. I wanted to be able to help him when he was found. The cards the professors had handed in listed what they thought they had received from Marsten via mental telepathy. This is what they had written:

1. *Shakespeare—Professor of English Literature*
2. *Darwin—Professor of Biology*
3. *Kidney—Professor of Anatomy*
4. *Debussey—Professor of Music*
5. *Opiate—Professor of Medicine*
6. *Adler—Professor of Psychology*
7. *Stalin—Professor in Russian History*
8. *Golf—Professor in Physical Education*
9. *Xmas—Professor in Theosophy.*

Each professor had written something *similar* in meaning to what Marsten had tried, through mental telepathy, to put into their minds. Except in the case of the Professor of Psychology. And in that one case there was a direct hit, as Marsten had said.

Oddly enough, Marian Adler had the same surname as the great psychoanalyst, Alfred Adler, whom Marsten had chosen for one of his projected thoughts. To me, the results did not seem the complete failure Marsten thought them. But of course Marsten had wanted to hit it one hundred percent. Nothing less would have satisfied a scientific mind like his in such an experiment.

The acrostic: S-D-K-D-O-A-S-G-X formed by the words apparently received by the Professors in that locked room was merely a jumble of letters, spelling out nothing of any meaning.

Finally, we parted to go our separate ways. I took the envelope and cards and went home. The others, with cars, would search for Marsten. I'd forgotten my work, my thesis, everything. I wanted to figure out something, but I didn't even know what it was. I had a most unscientific idea—a hunch!

All day I thought and sweated over that envelope's contents, the cards, the two acrostics:

T-E-L-E-P-A-T-H-Y
and
S-D-K-D-O-A-S-G-X

I worked all that day and through the night, but I could make no connection between the two acrostics.

Meanwhile, the search continued for Marsten, but there was no sign of him or his car. I sweated it out, trying to convince myself that he wasn't already dead, that when he was found I, meanwhile, would have found something in the remains of that experiment to give him new zest, new hope.

But I didn't know the technique he had used. I kept thinking of that one successful hit in the case of Doctor Adler. Here, I thought desperately, might be the clue to his technique.... I stayed up and worked at it another day, and into another night. If I could only prove that the experiment hadn't failed completely, then that information could be broadcast, televised, and maybe Marsten would see or hear, if he still lived, and then would want to keep on living.

It was odd how positive I was that there was something there that would prove Marsten right. Maybe we're all aware of much more than we think we are—and could have greater awareness if we could only raise a few mental curtains....

I pounded my brains out on that Adler angle. She was the only woman in the group. Maybe that had meaning. I went through some of Marsten's notes, but there weren't enough of them, and they weren't the basic ones. I skimmed through books on Extra Sensory Perception. But I didn't get anywhere....

And then the phone rang and I answered it. It was Police Lieutenant Walters, at the local precinct station. He had promised to let me know at once if they found any trace of Marsten.

"We found him," Walters said tersely. "He's on a ledge outside a window of the Loeb Building at Fifth and Pinehurst!"

I said, "My God!" Then, "Will you pick me up?"

He said, "Yes. Maybe you can talk him out of it. You were close to him. We've sent the emergency squads over. Never know when they'll jump when they're like that. One move at the wrong time and that makes them jump. I'll be there in five minutes...."

I felt sick with panic and hopelessness. Then, in that moment, out of nowhere, came the flash—the key—it shone there before me all at once, the answer I'd been looking for! I knew it had been there all along and my mind had gone around it time and again. And suddenly it was there, conscious and clear.

I arranged it all in my mind as we rode over to Fifth and Pinehurst, the police lieutenant intent on driving speedily through the heavy traffic.

If I could get to Marsten in time, I could save him! I'd had the explanation all along—I'd read it in a scientific journal, in reports I'd skimmed through on ESP. Marsten would understand—if I could get to him in time! He hadn't been wrong. And I could give him proof....

A big crowd was gathered in the early dawn, standing silently in the street, staring upward at the small figure on the ledge. The wind was cold and steady and in the early morning greyness I saw Marsten, thirty stories up, hunched against the side of the building. He wasn't a man to exhibit himself for melodramatic recognition. Therefore, I knew he must be very far out of his normal mind.

I am sure he went up there to jump immediately. But he had been there an hour, now. Perhaps, I thought, he was trying to figure, in a last desperate moment, where his experiment had failed. Trying to find in the mysterious, senseless chaos of embryonic human thought, a reason why he should not die....

The police got me through the crowd, inside the building and into an elevator. I ran down the hall of the thirtieth floor to the room where policemen were working with ropes and steel hooks. I heard one of them say, "We can't reach him. It's no use."

I stuck my head out the window, called Marsten's name. But the wind tore the words away, sent them in the opposite direction. He didn't turn his head. I could barely make out his features, dead white and void of expression.

"Don't jump, for God's sake!" I called over and over. "Professor, *you were right! The experiment was a success! Listen to me! It was a success!*"

I could see the uplifted faces down below, a blanket, a net they had stretched down there, both looking no bigger than a checker square.

Marsten didn't seem to hear me, but I kept yelling, trying to make him hear. I fought the wind, and whatever barrier there was between Marsten and myself. But he didn't turn, didn't seem to hear me, seemed unaware of me, of anything that went on around him.

I shouted the explanation to him of what I'd suddenly realized:

In these ESP tests the receiving impressions are the symbols on the various cards in a deck. Basically, the tests in ESP experiments all come down to one thing—the participants try, without seeing the cards, to identify the symbols on each card in a deck as they draw them from the pack.

In reviewing the results of these tests, it often happens that participants, extra-ordinarily gifted with what is called 'psychic ability,' have long runs of picking exact cards. But these runs are sometimes on the cards—*before the one that is being turned, or on the one after the one turned.*

In other words, if cards A-B-C-D-E-F-G have been turned, many times the participant will call B when C is turned, C when D is turned, E when F is turned, and so forth. There are various theories for the cause of this factor. It is a factor that comes up time and again. Marsten knew that. But in that intense moment he must have overlooked it. It hadn't occurred to any of the others there, either. We were all too close to the forest to see the trees....

And I screamed at the Professor against the wind and the morning: S-D-K-D-O-A-S-G-X form an acrostic, and they are all one letter in the alphabet *before* the letters that spell out T-E-L-E-P-A-T-H-Y! Except in the letter A, for Adler. There could not be a letter before A in the alphabet. So, there was no displacement factor on Adler's card.

"Marsten, listen to me! Can you hear? Can't you understand? The *displacement factor, Marsten! The Displacement Factor—*"

He never saw me, never heard me of that I am certain. Everything seemed too late for Marsten. I saw him lean forward, drop off the ledge. My words followed him crazily down as he fell: "*The displacement factor—*"

Maybe before he struck the concrete down there he realized that he had been right, that the experiment had not failed. I hope so. But I think, in view of his tragic death, that Professor Marsten deserves this explanation, this proof that his work was not in vain. And because of what his hypothesis may mean to scientists of the future.

It isn't conclusive enough for the strictly disciplined scientific method. But though others may think his experiment inconclusive, I *know* that Professor Marsten proved the existence of Mental Telepathy.

So I'm going to take up where Marsten ended his experiment—and his life—and I'm going to do it even though it may mean the end of my career in orthodox science.

And maybe if I keep working at it, and thinking about it long enough and steadily enough, Marsten will receive my thought. Then, wherever he is now, if he doesn't already know, maybe I'll be able to tell him that he didn't fail....

*** END OF THE PROJECT GUTENBERG EBOOK TOO CLOSE TO
THE FOREST ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.